

Independent Contractor Agreement

Master terms for contractors engaged through the Vantage Meridian delivery network

This Agreement sets out the master terms on which Vantage Meridian engages independent contractors to deliver services to its clients. It is signed when Vantage Meridian has won an engagement and has a confirmed role to place the Contractor into. No services are performed and no fees are payable, under this Agreement alone: each placement requires an Engagement Schedule (Schedule 1) signed by both parties, which then forms part of this Agreement.

Parties and details

Item 1 – Company	Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian, ABN 27 651 199 414, of Coorparoo, Queensland 4151 (“Vantage Meridian” or “the Company”)
Item 2 – Contractor	Name / entity: _____
	ABN: _____ ACN (if any): _____
	Address: _____
	Email: _____ Phone: _____
Item 3 – Contractor type	Incorporated entity (Pty Ltd) only. An individual who is not incorporated is engaged as an employee under a separate employment contract.
Item 4 – Key Person	_____ (the individual who will perform the Services)
Item 5 – Commencement	This Agreement commences on the date it is signed by both parties and continues until terminated under clause 12.
Item 6 – Governing state	Queensland

The Contractor must be an incorporated entity. Schedule 2 (Key Person Undertaking) applies to every Contractor engaged under this Agreement and must be signed by the Key Person before any assignment commences.

Background

- A. Vantage Meridian provides senior project delivery, procurement governance and technology transformation services to clients, including through competitive tenders and fields principal-led delivery teams drawn from an established network of practitioners.
- B. The Contractor carries on business supplying professional services through its Key Person and wishes to be engaged by Vantage Meridian to provide services to Vantage Meridian's clients from time to time.
- C. This Agreement records the master terms of that engagement. Each individual placement is recorded in an Engagement Schedule and this Agreement applies to every Engagement Schedule signed while it remains in force.

Agreed terms

1. Definitions

- 1.1 In this Agreement: **Client** means the client of Vantage Meridian identified in an Engagement Schedule and includes any related body corporate of that client; Client Approved Time means time beyond the Minimum Time Commitment that the Client approves or requests; Daily Rate means the rate specified in the relevant Engagement Schedule, exclusive of GST; Engagement Schedule means a schedule substantially in the form of Schedule 1 signed by both parties; Key Person means the individual named in Item 4; Payment Schedule means the Vantage Meridian Contractor Payment Schedule issued by the Company from time to time; Services means the services described in an Engagement Schedule; and Confidential Information means all information of or relating to the Company or a Client that is not public, including business processes, financial information, plans, client and supplier records, rates and fees, tender material and all documents created in the course of providing the Services, but excluding information that enters the public domain other than through unauthorised disclosure.
- 1.2 **Intellectual Property** means all present and future industrial and intellectual property rights, including inventions, improvements, trade marks, designs, copyright, moral rights and corresponding rights under the law of any jurisdiction. **Employee Entitlements** means payments or benefits required by law, award or agreement, including salary and wages, annual leave, personal leave, long service leave and superannuation contributions.

2. Engagement and Engagement Schedules

- 2.1 Vantage Meridian engages the Contractor as an independent contractor to provide the Services through the Key Person, on the terms of this Agreement.
- 2.2 No Services are to be performed under this Agreement alone. Each assignment requires an Engagement Schedule describing the role, the Client, the location, the Services, the Daily Rate, the term and any special conditions. A new Engagement Schedule is issued for each new assignment or extension.
- 2.3 Once signed by both parties, an Engagement Schedule forms part of this Agreement. If an Engagement Schedule is inconsistent with these master terms, the Engagement Schedule prevails for that assignment.
- 2.4 This Agreement does not oblige Vantage Meridian to offer the Contractor any assignment and does not oblige the Contractor to accept an assignment that is offered. It creates no entitlement to a minimum amount of work.

3. Relationship

- 3.1 The Contractor is engaged as an independent contractor. Nothing in this Agreement creates a relationship of employment, agency or partnership between the Key Person and the Company or any Client.
- 3.2 The Contractor acknowledges that neither the Company nor any Client is liable to the Contractor or the Key Person for Employee Entitlements, including annual leave, personal or sick leave, long service leave, parental leave, public holidays or superannuation, except where superannuation legislation requires otherwise.
- 3.3 Subject to clause 3.4, the Contractor and the Key Person may provide services to any other person if this does not interfere or conflict with their ability to provide the Services as required by this Agreement.
- 3.4 During an assignment, the Contractor and the Key Person must not provide services to a competitor of the Company or the Client or take on concurrent commitments that hinder delivery of the Services, without the Company's prior written consent.
- 3.5 The Client may direct, monitor and assess the day-to-day performance of the Services at the Client site, subject to any special conditions in the relevant Engagement Schedule and the general directions of the Company.

4. Services and standards

- 4.1 The Contractor must ensure that the Services are performed at all times by the Key Person and warrants that it and the Key Person hold the skills and expertise necessary to perform the Services properly.
- 4.2 The Key Person must perform the Services diligently, in good faith and in accordance with:
 - (a) the reasonable requirements and directions of the Company and the Client;
 - (b) a level of professional skill and care at least equal to that of an experienced professional performing a role of the same type and complexity; and
 - (c) all applicable laws and professional standards.
- 4.3 All work product created by the Key Person under this Agreement must be original, must not be derived from third-party work in breach of any right and must not contain any virus or similarly damaging code or any defamatory material.
- 4.4 The role and location may change during an assignment by agreement. This Agreement continues to apply regardless of such changes unless varied in writing and signed by both parties.

5. Contractor obligations

- 5.1 The Contractor must maintain all licences, registrations, permits and authorities necessary to provide the Services and must provide evidence of compliance on request.
- 5.2 The Contractor must ensure that the Key Person has a valid right to work in Australia and must provide supporting evidence (including VEVO check results) on request.
- 5.3 If required by the Company or a Client, the Key Person must undertake background and screening checks at the Contractor's cost, which may include identity, right-to-work, police, qualification and reference checks. Commencement of an assignment may be conditional on clearance of these checks.
- 5.4 The Contractor must use all reasonable means to ensure the continued availability of the Key Person for the duration of each assignment and must not withdraw the Key Person

from an assignment without the Company's prior written consent, except where the Key Person is unable to work due to illness or family circumstances.

6. Fees, timesheets and invoicing

- 6.1 In consideration of the performance of the Services, the Company will pay the Contractor a fee calculated by multiplying the Daily Rate by the number of days the Services were provided in the relevant period, together with any Client Approved Time agreed in writing.
- 6.2 The Daily Rate is exclusive of GST. If the Contractor is registered for GST, GST is payable in addition on receipt of a valid tax invoice.
- 6.3 The Contractor must ensure that the Key Person:
 - (a) records all time spent performing the Services in the timesheet system nominated by the Company or the Client;
 - (b) submits each weekly timesheet for Client approval by 5.00pm Friday for that week (or as the Engagement Schedule specifies); and
 - (c) provides approved timesheets to the Company as specified in the Payment Schedule.
- 6.4 The Contractor must invoice monthly, submitting a valid tax invoice by the invoice submission deadline in the Payment Schedule. Each invoice must show the Contractor's name and ABN, the invoice period, the days worked, the Daily Rate, GST (if applicable) and the invoice total.
- 6.5 Subject to receipt of a valid tax invoice and Client-approved timesheets, payment will be made on the scheduled payment date in the Payment Schedule, being the last business day of the month following the month in which the work was performed. Time not approved when an invoice is processed is paid in the following payment run.
- 6.6 To avoid uncertainty, fees are payable only for work that can be billed to the Client and the Company is not obliged to pay any person other than the Contractor.
- 6.7 The Contractor acknowledges that the Daily Rate was freely negotiated, that no other payments are due unless expressly agreed in writing and that the Contractor must not disclose the Daily Rate to any person associated with the Company or the Client.

7. Insurance

- 7.1 The Contractor must, at its own cost, take out and maintain:
 - (a) professional indemnity insurance;
 - (b) public liability insurance;
 - (c) workers' compensation insurance as required by law; and
 - (d) where the Key Person is a working director not covered by the Contractor's workers' compensation policy, a personal accident and illness policy is strongly recommended and may be required by a Client as a condition of placement.
- 7.2 On request, the Contractor must provide the Company with certificates of currency for required insurances before commencing an assignment and at each renewal.

8. Taxes and statutory obligations

- 8.1 The Contractor is solely responsible for the payment or withholding of all taxes arising from receipt of the fees, including income tax, GST remittance and any PAYG obligations of the

Contractor's own business and must remit them to the ATO or relevant revenue office as required.

- 8.2 The Contractor acknowledges that neither the Company nor any Client is liable for Employee Entitlements, PAYG withholding, superannuation, WorkCover premiums or payroll tax in respect of the Key Person, except to the extent the law provides otherwise and the Contractor must on request provide a subcontractor statement confirming compliance with its superannuation, workers' compensation and payroll tax obligations.

9. Confidentiality

- 9.1 The Contractor and the Key Person must ensure that Confidential Information is:
- (a) kept confidential and protected from unauthorised use or disclosure;
 - (b) not disclosed to or used by any third party without the written consent of the Company or the relevant Client;
 - (c) used only for the purposes of the Services;
 - (d) not copied, memorised, reproduced or reverse engineered for any other purpose; and
 - (e) not removed from the Company's or the Client's premises or systems without written consent.
- 9.2 Confidential Information of the Client remains the Client's property and Confidential Information of the Company remains the Company's property. No rights in it are granted to the Contractor or the Key Person.
- 9.3 The Contractor and the Key Person must not disclose the terms of this Agreement to any third party other than their professional advisers and must notify the Company immediately on becoming aware of any suspected or actual unauthorised use or disclosure of Confidential Information.
- 9.4 The obligations in this clause survive termination of this Agreement, but do not apply to information required to be disclosed by law.

10. Intellectual Property

- 10.1 The Contractor and the Key Person must promptly and fully communicate to the Company all discoveries, improvements and inventions made or conceived in the course of providing the Services.
- 10.2 All Intellectual Property rights in material created in the course of providing the Services vest exclusively in the Company (or, where the relevant Engagement Schedule or the Company's contract with the Client so requires, in the Client) on and from creation. To the fullest extent permitted by law, the Contractor and the Key Person assign all such rights, including future copyright, by way of present assignment; to the extent the assignment is not effective at law it is effective in equity and the rights are held on trust for the Company.
- 10.3 The Key Person consents to acts or omissions that would otherwise infringe the Key Person's moral rights in work created in the course of the Services. The consents and assignments in this clause are perpetual, irrevocable and survive termination.
- 10.4 The Contractor must not infringe the Intellectual Property rights of any third party in the course of providing the Services and agrees to execute all documents reasonably required to give effect to this clause.

11. Policies, conduct and safety

- 11.1 The Company will make available or procure access to, the Client policies relevant to an assignment, including policies on privacy, acceptable use, harassment and workplace health and safety and will take reasonable steps to ensure the locations at which the Services are performed are safe.
- 11.2 The Contractor and the Key Person must obtain, read and fully comply with the policies, codes of conduct, rules and procedures of the Company and the Client advised as relevant to the Services.
- 11.3 The Key Person must take reasonable care for their own health and safety and that of others, comply with reasonable safety instructions, report work-related injuries and apparent safety risks as soon as practicable and must not possess or be impaired by any substance that affects their ability to perform the Services safely.
- 11.4 The Contractor and the Key Person must not make any public statement, including on social media, about the Company, a Client or an assignment without the Company's prior written consent.

12. Term and termination

- 12.1 Each assignment runs from the commencement date to the end of the term stated in its Engagement Schedule, unless extended in writing signed by both parties and terminates automatically at expiry without notice or termination payment.
- 12.2 Either party may terminate an assignment or this Agreement by giving the notice period stated in the relevant Engagement Schedule (or four weeks' written notice if none is stated).
- 12.3 The Company may terminate an assignment or this Agreement immediately by written notice if:
 - (a) the Key Person does not perform the Services to the reasonable satisfaction of the Client or the Company;
 - (b) the Contractor or the Key Person commits serious misconduct, gross negligence, fraud, dishonesty or a criminal offence;
 - (c) the Contractor breaches this Agreement and fails to remedy the breach within 14 days of written notice;
 - (d) the Contractor becomes insolvent or bankrupt or enters into an arrangement with its creditors; or
 - (e) the Client ends the assignment or no longer requires the Key Person for any reason, in which case termination takes effect on the Client's end date and the Company's only obligation is to pay for Services performed up to that date.
- 12.4 On termination or expiry, the Contractor and the Key Person must immediately return or destroy (as directed) all Confidential Information and all property of the Company and the Client in their possession or control and must submit final approved timesheets and a final invoice within 14 days.

13. Restraint

- 13.1 During each assignment and for 12 months after it ends, the Contractor and the Key Person must not, directly or indirectly, accept an engagement with or provide services to the Client of that assignment (or a related body corporate of the Client) other than through the Company, unless the Company gives prior written consent.

- 13.2 The parties acknowledge this restraint is reasonable and necessary to protect the Company's legitimate business interests, including its client relationships and goodwill. If the restraint is unenforceable as written, it applies to the maximum extent permitted by law.

14. Indemnity

- 14.1 The Contractor indemnifies the Company and its personnel against any loss, liability, expense, damage, cost or claim arising directly or indirectly from:
- (a) actual or alleged infringement of third-party Intellectual Property rights by the Contractor or the Key Person;
 - (b) any breach of the confidentiality obligations in this Agreement;
 - (c) any fraud, dishonesty or wilful misconduct of the Contractor or the Key Person;
 - (d) any claim for Employee Entitlements by or on behalf of the Contractor, the Key Person or any person engaged by the Contractor; and
 - (e) any failure by the Contractor to deduct or pay taxes it is responsible for, including payroll tax and PAYG deductions.
- 14.2 This indemnity survives termination of this Agreement.

15. Subcontracting and assignment

- 15.1 The Company relies on the expertise of the Contractor and the Key Person. The Contractor must not subcontract or assign any of its obligations without the Company's prior written consent, which may be given subject to reasonable conditions.
- 15.2 If control or ownership of the Contractor changes during this Agreement, the Contractor must ensure continuity of the Services on the terms agreed and remains liable for its obligations under this Agreement.

16. Notices and general

- 16.1 A notice under this Agreement is sufficiently served if delivered personally or 24 hours after being sent by email or registered post to the addresses in Items 1 and 2 (or as updated in writing).
- 16.2 A waiver of one breach is not a waiver of any other breach. If part of this Agreement is void or unenforceable, the remainder continues in force. This Agreement and its Engagement Schedules record the entire agreement between the parties and may be varied only in writing signed by both parties.
- 16.3 For the purposes of the Privacy Act 1988 (Cth), the Contractor and the Key Person consent to the Company collecting, holding and using personal information provided in connection with this Agreement for engagement administration, payment, insurance, compliance and placement purposes and to disclosure to Clients as reasonably required for tenders and assignments.

17. Governing law

- 17.1 This Agreement and each Engagement Schedule are governed by the laws of the State named in Item 6 and the parties submit to the non-exclusive jurisdiction of the courts of that State.

Execution

Executed as an agreement.

Signed for and on behalf of Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian, ABN 27 651 199 414:

Signature: _____

Name: Sky Lavelle Office held: Director

Date: _____

Signed by / for and on behalf of the Contractor:

Signature: _____

Name: _____ Office held: _____

Date: _____

The Contractor signs through a director or other authorised officer and the Key Person must also sign the Key Person Undertaking at Schedule 2 before commencing any assignment.

Schedule 1 - Engagement Schedule

This Engagement Schedule is issued under and forms part of, the Independent Contractor Agreement between Vantage Meridian and the Contractor named below. A new Engagement Schedule is completed and signed for each assignment or extension.

Engagement Schedule no.	_____ Date: _____
Contractor	_____
ABN	_____
Key Person	_____
Role	_____
Services / tasks	As described in the role description agreed with the Client and the Key Person and as reasonably directed.
Client and location	_____
Reporting manager	_____
Daily Rate	\$ _____ per day, excluding GST
Minimum time commitment	8 hours per working day, unless otherwise stated
Contract term	From ____ / ____ / _____ to ____ / ____ / _____ inclusive
Notice period	4 weeks, unless otherwise stated here: _____
Payment cycle	Monthly. Valid tax invoice and Client-approved timesheets by the invoice submission deadline in the Vantage Meridian Contractor Payment Schedule; payment on the last business day of the following month.
Special conditions	Start date subject to any Client background checks. Other conditions: _____

Signed for and on behalf of Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian:

Signature: _____ Name: Sky Lavelle, Director Date: _____

Signed by / for and on behalf of the Contractor:

Signature: _____ Name: _____
Date: _____

Schedule 2 - Key Person Undertaking

To be signed by the Key Person before any assignment commences. This Schedule applies to every Contractor engaged under the Agreement.

I, _____ (the Key Person), of the Contractor named in Item 2 of the Independent Contractor Agreement with Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian, ABN 27 651 199 414, acknowledge that I will personally perform services for Vantage Meridian and its clients under that Agreement and I undertake in favour of Vantage Meridian that:

1. I will comply with the confidentiality obligations in clause 9 of the Agreement as if they applied to me directly, including keeping the Daily Rate and the terms of the Agreement confidential;
2. I assign to Vantage Meridian (or the Client, where the Agreement so requires) all Intellectual Property rights in material I create in the course of the services, on the terms of clause 10 of the Agreement and I consent to acts or omissions that would otherwise infringe my moral rights in that material;
3. I will comply with the policies, conduct and safety obligations in clause 11 of the Agreement and with the restraint in clause 13;
4. I will promptly execute any further documents reasonably required to give effect to this Undertaking; and
5. these undertakings are given for the benefit of Vantage Meridian and survive the end of any assignment.

Signed by the Key Person:

Signature: _____

Name: _____ Date: _____

Witness signature: _____

Witness name: _____